

Refusal to provide a breath or blood specimen will result in the suspension of the minor's license or driving privileges if not licensed.

Table 27: Penalties for Refusal to Provide a Specimen - Minors

Offense	Penalty
1st offense	Driver license suspended (or privilege denied if not licensed) for 180 days.
2nd and subsequent offenses	Driver license suspended (or privilege denied if not licensed) for 2 years.

A minor who gives a breath or blood specimen that confirms he/she has been operating a motor vehicle in a public place with any detectable amount of alcohol in his/her system and the amount is below the 0.08 BAC legal limit of intoxication will have his/her license suspended or driving privilege denied if not licensed.

Table 28: Minor Provided Specimen Confirming Detectable Amount of Alcohol (failure)

Offense	Penalty
1st offense	Driver license suspended (or privilege denied if not licensed) for 60 days.
2nd offense	Driver license suspended (or privilege denied if not licensed) for 120 days.
3rd and subsequent offenses	Driver license suspended (or privilege denied if not licensed) for 180 days.

A minor may request a hearing before a hearing officer to contest the suspension.

Table 29: Penalties for Driving Under the Influence (DUI) of Alcohol and Drugs– Minors

Offense	Penalty
1st offense	Class C misdemeanor punishable by a fine of up to \$500, community service of 20 to 40 hours, and attendance in an alcohol awareness course is required. If the minor is under 18, the parent may be required to also attend the course.
2nd offense	Class C misdemeanor punishable by a fine of up to \$500, community service of 40 to 60 hours. The alcohol awareness course may be required.
3rd offense (under 17 years of age)	Class C misdemeanor punishable by a fine of up to \$500, community service of 40 to 60 hours. The alcohol awareness course may be required or the case can be transferred to Juvenile Court as delinquent conduct.
3rd offense (17 to 21 years of age)	Class B misdemeanor punishable by a fine of \$500 to \$2,000 and/or confinement in jail not to exceed 180 days, community service of 40 to 60 hours, an alcohol awareness course may be required, and the minor's license will be suspended (or privilege denied if not licensed) for one year or for 90 days with a judge's order to install an ignition interlock device. The court may not give deferred disposition or adjudication on the third offense.

See Table 29 and Table 30 for the applicable suspension periods

In Texas, as a reminder, a person is considered legally intoxicated if they have a blood alcohol concentration (BAC) of 0.08 or more.

Table 30: Penalties for Driving While Intoxicated (Alcohol) – Minors

Offense	Penalty
1st offense	Class B misdemeanor punishable by a fine not to exceed \$2,000, confinement in jail for 72 hours to 180 days, and suspension of the driver license (or privilege denied if not licensed) for 365 days, or for 90 days with a judge's order to install an ignition interlock device. The court may probate the jail sentence and waive the license suspension on the first offense only. Possession of an open container of an alcoholic beverage increases the minimum confinement to six days.
2nd offense	Class A misdemeanor punishable by a fine not to exceed \$4,000, confinement in jail for 30 days to 1 year, and suspension of the driver license (or privilege denied if not licensed) for 180 days to 18 months.
3rd offense and every offense after	Felony of the third degree punishable by a fine not to exceed \$10,000, imprisonment in the Texas Department of Criminal Justice (TDCJ) for 2 to 10 years, and suspension of the driver license (or privilege denied if not licensed) for 180 days to 18 months.
DWI with passenger under 15	A state jail felony punishable by a fine not to exceed \$10,000, confinement in state jail for 180 days to 2 years and suspension of the driver license (or privilege denied if not licensed) for 90 days to 1 year.
Intoxication assault	Third degree felony punishable by a fine not to exceed \$10,000, imprisonment in the Texas Department of Criminal Justice (TDCJ) for 2 to 10 years, and suspension of the driver license (or privilege denied if not licensed) for 90 days to 1 year.
Intoxication manslaughter	Second degree felony punishable by a fine not to exceed \$10,000, imprisonment in the Texas Department of Criminal Justice (TDCJ) for 2 to 20 years, and a suspension of the driver license (or privilege denied if not licensed) for 180 days to 2 years.